

Legal Strategy and Counsel Selection

Report: Precautionary Attachment and Insolvency Litigation in Kraków

Jurisdictional Analysis and Venue Verification

The debtor, Mateusz Szklarski-Łopata, conducting commercial operations as a sole proprietorship (*jednoosobowa działalność gospodarcza* or *JDG*) under the registered trade name "GPUcomputer" (NIP: 8661681248), maintains his registered business address at ul. Mogilska 16/7, 31-516 Kraków [User Context]. Under Polish civil procedure, territorial jurisdiction for disputes involving natural persons conducting business is determined by their registered place of business or residence. The address on ul. Mogilska falls squarely within the territorial jurisdiction of the Sąd Rejonowy dla Krakowa-Śródmieścia w Krakowie, situated at ul. Przy Rondzie 7, 31-547 Kraków.¹

Because the underlying claim is commercial in nature—arising from an unfulfilled custom workstation order and a subsequent contractually binding refund agreement executed via email—the proper venue for filing the precautionary attachment motion (*wniosek o zabezpieczenie roszczenia*) is the V Commercial Division (*V Wydział Gospodarczy*) of the Sąd Rejonowy dla Krakowa-Śródmieścia, located at ul. Kazimierza Kordylewskiego 11, 31-542 Kraków.³

Furthermore, if the debtor's financial distress culminates in a formal bankruptcy or restructuring petition, the competent judicial body to oversee the insolvency administration is the VIII Division for Bankruptcy and Restructuring Cases (*VIII Wydział Gospodarczy dla spraw Upadłościowych i Restrukturyzacyjnych*) at the same court.⁴

The client's current procedural posture involves a pending electronic writ of payment proceeding (*elektroniczne postępowanie upominawcze* or *EPU*) initiated on April 8, 2026, in the Sąd Rejonowy Lublin-Zachód, VI Civil Division (Case No. Nc-e 552126/26) [User Context]. The

1, 938 PLN
court fee of has been paid, and the case status remains "Wpływ / Zadekretowano – Nowa," meaning no payment order (*nakaz zapłaty*) has been issued [User Context].

Pursuant to Article 730(1) and Article 730¹ of the Polish Code of Civil Procedure (*Kodeks postępowania cywilnego* or *KPC*), a precautionary attachment motion may be filed before a formal payment order is obtained, provided that the creditor satisfies two cumulative statutory requirements:

Requirements = Credibility of the Claim (*Uprawdopodobnienie*) $\wedge$ Legal Interest

First, the credibility of the claim (*uprawdopodobnienie roszczenia*) is established by the email

correspondence of March 10, 2026, where the debtor unconditionally acknowledged the debt

and committed to refunding **155,000 PLN** plus interest within 14 business days—a deadline that lapsed on March 30, 2026 [User Context].

Second, the legal interest (*interes prawny*) is demonstrated by the debtor's written admission that he is seeking "bankruptcy protection" following the collapse of a Hong Kong supplier [User Context]. This explicit declaration of insolvency risk serves as objective evidence that a lack of immediate security will prevent or seriously impede the execution of any future judgment, satisfying KPC Article 730¹ § 2.

The Insolvency Race: Strategic and Tactical Execution

A critical conflict exists between individual debt enforcement and collective insolvency proceedings under Polish law. The debtor's assertion that he has already "filed for bankruptcy protection" is not supported by the National Register of Debtors (*Krajowy Rejestr Zadłużonych* or *KRZ*) as of May 21, 2026 [User Context]. This discrepancy indicates that the creditor is currently in a time-sensitive race against the formal opening of restructuring or bankruptcy. Under Article 170 of the Polish Restructuring Law and Article 146 of the Polish Bankruptcy Law, the formal opening of court-supervised restructuring or the declaration of bankruptcy triggers an automatic stay on individual enforcement actions, suspending any active bailiff executions. If the debtor successfully opens a restructuring proceeding before a precautionary attachment is

executed on his bank accounts, the client's **155,000 PLN** claim will be categorized as a regular, unsecured commercial debt (Category III of the bankruptcy estate) [User Context]. Recovery rates within Category III historically range from 0% to 30%, resulting in a near-total write-off [User Context].

Executing the precautionary attachment before any formal court decree is published in the KRZ is the single highest-leverage action available to preserve the creditor's recovery prospects. If the V Commercial Division in Kraków grants the attachment order, the client's selected counsel must immediately submit the order to a local bailiff (*komornik sądowy*) operating within the jurisdiction of the Sąd Apelacyjny w Krakowie.⁵

The statutory window for executing a precautionary attachment is exceptionally short, requiring action within days of the order's issuance. The bailiff will utilize the electronic OGNIVO system to immediately freeze the debtor's known bank account at Alior Bank (Account No. PL84 2490 0005 0000 4530 9127 6540) along with any other accounts registered under the debtor's NIP across all Polish financial institutions [User Context].

Concurrently, the bailiff must register a forced mortgage (*hipoteka przymusowa*) against any real property identified through the Land and Mortgage Register (*Księgi Wieczyste*) and execute a physical seizure of movables and receivables at the debtor's business premises on ul. Mogilska 16/7 [User Context].

Securing these assets prior to any bankruptcy declaration provides the creditor with critical leverage. It establishes a secured interest that must be accounted for even within insolvency proceedings and often forces the debtor to offer a separate, secured settlement to avoid total

operational paralysis.
Following the initial attachment, the selected counsel must coordinate four parallel procedural tracks:



- EPU Monitoring and Payment Order Execution:** Counsel must monitor the pending e-court case (Nc-e 552126/26) [User Context]. If a payment order (*nakaz zapłaty*) is issued and the debtor files an objection (*sprzeciw*), or if the e-court dismisses the case, the matter will be referred to ordinary proceedings [User Context].
- Ordinary Commercial Lawsuit Refiling:** If the EPU is cancelled or referred, counsel must refile the claim as an ordinary commercial lawsuit within the strict statutory three-month window to maintain the validity of the precautionary attachment. This

requires topping up the court fee from the **1, 938 PLN** already paid in EPU to the standard 5% commercial court fee [User Context]. For a **155, 000 PLN** claim, the total fee is **7, 750 PLN**, requiring a

top-up of **5,812 PLN** [User Context]:

$$\text{Top-up Fee} = (155,000 \text{ PLN} \times 0.05) - 1,938 \text{ PLN} = 5,812 \text{ PLN}$$

3. **Insolvency Registry (KRZ) Monitoring:** Daily monitoring of the KRZ is required. If bankruptcy or restructuring is opened, counsel must file a formal proof of claim (*zgłoszenie wierzytelności*) electronically via the KRZ portal within 30 days of the court's public announcement.⁶
4. **Criminal Pressure Track:** If the debtor's actions indicate he accepted the workstation order and funds without any intention of delivering the goods, counsel should prepare a criminal complaint under Article 286 § 1 of the Polish Penal Code (*Kodeks karny* or *KK*) for commercial fraud [User Context]. This serves as an auxiliary pressure tool to encourage settlement.

Detailed Evaluation of Shortlisted Kraków Counsel

The following six legal practitioners and boutique law firms have been selected and evaluated based on their substantive expertise, geographic proximity to the Sąd Rejonowy dla Krakowa-Śródmieścia, speed of mobilization, foreign-client communication capacity, and fee alignment.

Gostyński & Partners (Gostyński i Wspólnicy)

Metric	Details	Source
Lead Contact	Szymon Gostyński (Adwokat, Managing Partner)	⁷
Office Address	ul. Studencka 1/9, 31-116 Kraków	⁷
Contact Info	Phone: +48 12 429 20 25 Email: contact@gostynski.net	⁷
Bar Registration	Registered with the Kraków Bar Association (<i>Krakowska Izba Adwokacka</i>); precise registration number must	⁹

	be verified directly [User Context]	
Languages	Polish, English (Native/Bilingual), German, Ukrainian, Russian	⁷
Ranking Signals	NYSBA Chapter Chair for Poland; Attorney of Trust for Austrian Consulate General	⁷
Fee Structure	Upon request; standard commercial rates with custom fixed/hourly combinations	[User Context]

Specialization and Strategic Fit

Gostyński & Partners is an established commercial law firm with over 20 years of practice in corporate dispute resolution, commercial debt recovery, and cross-border litigation.⁷ The firm's managing partner, Szymon Gostyński, graduated with honors from the Jagiellonian University and is admitted to the New York State Bar.⁷

The firm integrates legal, tax, and accounting services, making them highly adept at tracking complex business transactions and identifying hidden debtor assets.⁷ Their expertise in insolvency law covers both advising debtors seeking court protection and representing creditors enforcing their claims against distressed entities.⁷

Because the client resides outside Poland and communications must be conducted in English, Gostyński & Partners offers an exceptionally strong cultural and linguistic fit.⁷ Szymon Gostyński's dual qualification and extensive international corporate background ensure a level of communication that matches the standards of international law firms, while maintaining local execution capabilities in Kraków.⁷

Risk Assessment and Red Flags

No disciplinary actions, negative professional reviews, or potential conflicts of interest with the debtor have been identified. The only notable constraint is that Gostyński & Partners operates as a premium commercial practice.⁷ Consequently, their fee structure may lean toward the higher end of the client's budget, though still likely within the

8, 000–20, 000 PLN range for the full matter [User Context].

Draft Outreach Correspondence

Subject: URGENT: Precautionary Attachment & Commercial Debt Enforcement (Krakow)-
Claim: 155k PLN

Dear Mr. Gostyrski,

I am contacting you to secure immediate legal representation for a time-sensitive
commercial debt recovery matter in Krakow. The case requires filing an urgent
precautionary attachment motion (wniosek o zabezpieczenie roszczenia under Art
730-757 KPC) against a Krakow-based sole proprietorship (JDG).

Case Parameters:

Creditor: Magnus Brantheim (based in Sweden/Poland)
Debtor: Mateusz Szklarski-Lopata, i/a "GPUcomputer" (NIP 8661681248, registered at ul.
Mogilska 16/7, Krakow)
Claim: 155,000 PLN principal plus statutory interest, based on an explicit written refund
agreement formed via email.
Procedural Posture: An EPU proceeding was initiated in April 2026 (Case No. Nc-4
552125/26, currently "Zadekretowano"). However, the debtor has notified me via email that
he is seeking bankruptcy protection. A check of the KRZ shows no formal filing has been
registered yet, meaning we are in a critical window to execute a bank account freeze.

Given the immediate risk of bankruptcy, I require counsel to draft and file the wniosek o
zabezpieczenie in the Sad Rejonowy dla Krakowa-Srodmiescia (V Commercial Division)
this week, and subsequently coordinate its execution with a Krakow-area bailiff to freeze
the debtor's Alior Bank account (PL84 2490 0005 0000 4530 9127 6540) and other
assets.

Could you please confirm:

1. Your firm's capacity to take on this urgent matter this week.
2. Your estimated fixed-fee quote for drafting and filing the wniosek o zabezpieczenie.
3. Your hourly rates or success fee structures for the subsequent ordinary lawsuit and KRZ
representation.
4. Your estimated timeline to file the motion.

I can provide the evidentiary emails and payment confirmations immediately. I possess a

qualified electronic signature and can execute a Power of Attorney today.

Kind regards,

Magnus Branthén

Wojciech Kremer Kancelaria Radcy Prawnego

Metric	Details	Source
Lead Contact	Wojciech Kremer (Radca prawny)	11
Office Address	ul. Armii Krajowej 18 (Galileo, 10th floor), 30-150 Kraków	11
Contact Info	Phone: +48 791 871 157 Email: biuro@kremerlegal.pl / w.kremer@kremerlegal.pl	11
Bar Registration	Registered with the Kraków District Chamber of Legal Counsels (<i>OIRP Kraków</i>); precise registration number must be verified directly [User Context]	11
Languages	Polish, Fluent English	11
Ranking Signals	Highly regarded local commercial boutique; Jagiellonian University honors graduate	11
Fee Structure	Hourly/fixed rates upon request; transparent boutique pricing structures	11

Specialization and Strategic Fit

Wojciech Kremer operates a specialized legal practice focusing on civil litigation, corporate law, and bankruptcy and restructuring law for commercial entities.¹¹ Having spent several years at a major Kraków law firm where he managed corporate restructuring and bankruptcy files, Kremer has a deep understanding of insolvency dynamics.¹¹

His litigation experience is highly aligned with this case, specifically covering contract non-performance, asset recovery, and *actio Pauliana* (fraudulent conveyance) actions.¹¹

The boutique nature of Kremer's practice allows for direct partner attention and high procedural agility.¹¹ For an urgent matter where filing must occur within days to preempt an insolvency filing, a dedicated specialist who is fluent in English can often mobilize faster than a larger corporate firm.¹¹

His academic credentials from the Jagiellonian University and his bilingual capability make him highly suitable for handling international commercial claims.¹¹

Risk Assessment and Red Flags

There are no disciplinary or professional red flags [User Context]. The primary consideration is capacity: as a boutique practice, a sudden surge in active trials could theoretically impact immediate availability.¹¹

However, his dedicated focus on litigation and commercial debt enforcement suggests he can accommodate urgent precautionary motions.¹¹

Draft Outreach Correspondence

Subject: URGENT: Precautionary Attachment & Creditor Representation (Kraków)

Magnus Branthén

Dear Mr. Kremer,

I am looking to immediately retain a Kraków-based legal counsel to file an urgent precautionary attachment motion (wniosek o zabezpieczenie roszczenia) and handle subsequent commercial debt litigation.

Case Parameters

Claim: 155,000 PLN principal plus statutory interest, based on a confirmed email refund agreement.

Debtor: Mateusz Szklarski-Lopata, t/a "GPUcomputer" (NIP 8661681248, ul. Mogilska 16/7)

Kraków)

Urgency: The debtor claims to have filed for "bankruptcy protection" due to supply chain failures. No entry is active in the KRZ yet. I have an active EPU case (Nc-e 552126/26) pending in Lublin with no payment order issued yet, and need to urgently secure an attachment order via the Sąd Rejonowy dla Krakowa-Śródmieścia (V Wydział Gospodarczy) to freeze his Allor Bank account (PL 84 2490 0005 0000 4530 9127 6540) before any formal restructuring or bankruptcy is opened.

Given your specialization in bankruptcy, restructuring, and debt enforcement, I believe your practice is an excellent fit for this matter.

Could you please confirm your immediate availability this week and provide:

1. A fixed-fee estimate for drafting and filing the precautionary attachment motion;
2. Your estimated timeline for preparing and filing the motion;
3. Your fee structure for follow-on commercial litigation and potential creditor representation in bankruptcy/restructuring.

I am prepared to wire the retainer and execute a power of attorney electronically today.

Kind regards,
Magnus Brantheim

Proniewski & Przybyłka (PPSC)

Metric	Details	Source
Lead Contact	Piotr Proniewski (Adwokat)	6
Office Address	ul. Konopnickiej 5/4, 30-302 Kraków	6
Contact Info	Phone: +48 12 345 56 94 +48 609 521 683 Email: kancelaria@ppsc.pl	6
Bar Registration	Registered with the Kraków Bar Association (<i>Krakowska Izba Adwokacka</i>); precise registration number must	6

	be verified directly [User Context]	
Languages	Polish, English	⁶
Ranking Signals	Over 15 years of market practice; several thousand commercial litigations managed	⁶
Fee Structure	Flat-rate, hourly, or mixed structures negotiated upon engagement	⁶

Specialization and Strategic Fit

Proniewski & Przybyłka (PPSC) is a highly structured commercial dispute and insolvency practice with offices in Kraków, Tychy, and Świątniki.⁶ The firm's bankruptcy and restructuring practice group provides comprehensive representation for both corporate debtors and creditors.⁶

Importantly, PPSC explicitly lists "protective actions to secure creditors' interests preceding bankruptcy or restructuring filings by their dłużnicy" as a core competency.⁶ This matches the client's exact tactical need: securing an attachment order before the debtor files for bankruptcy.⁶

The firm is highly active in representing creditors within bankruptcy proceedings, including managing claims through the KRZ portal.⁶ This technical capability is critical for the follow-on phase if the debtor follows through on his threat to file for bankruptcy.⁶

Risk Assessment and Red Flags

No negative reviews, conflicts, or disciplinary actions were identified. Because PPSC is a multi-office firm, it is important to confirm that the lead attorney, Piotr Proniewski, or a senior associate in the Kraków office is directly assigned to handle the local filing and bailiff coordination.⁶

Draft Outreach Correspondence

Subject: URGENT: Precautionary Attachment & Creditor Protection – Magnus Brantheim v GPUcomputer

Dear Mr. Proniewski,

I am writing to secure urgent legal representation in Krakow to file a precautionary attachment motion (wniosek o zabezpieczenie) and manage follow-on commercial debt collection.

My case involves a 155 000 PLN claim against Mateusz Szklarski-Lopata, trading as "GPUcomputer" (NIP 8661681248, ul. Mogilska 10/7 Krakow). The debtor has explicitly stated that he is seeking bankruptcy protection. My search of the KRZ shows no active filing yet, but the threat is immediate. An EPU case has been filed (Nc-e 552126/26) but is still pending decree, and I must urgently secure an attachment order from the Sąd Rejonowy dla Krakowa-Śródmieścia to freeze his known Allor Bank account (PL84 2490 0005 0000 4530 9127 6540) before any restructuring or bankruptcy is formally opened.

Your firm's stated expertise in creditor-side protective actions (działania zabezpieczające) and restructuring law makes you a primary candidate for this case.

Please let me know:

1. If your team has the capacity to draft and file the wniosek o zabezpieczenie this week.
2. Your fixed-fee quote for the attachment motion and subsequent coordination with the Krakow bailiff.
3. Your estimated timeline to file.
4. Your hourly rates or success fee structure for the subsequent ordinary commercial lawsuit and KRZ monitoring.

I am prepared to provide the complete documentation and execute an electronic POA immediately.

Kind regards,
Magnus Brantheim

Groele i Wspólnicy

Metric	Details	Source
Lead Contact	Bartosz Groele (Adwokat,	16

	Licensed Restructuring Advisor)	
Office Address	ul. Rakowicka, Kraków (exact street details verified via their portal)	¹⁶
Contact Info	Contact verified via official portal (http://groele.pl) Email: contact@groele.pl	¹⁶
Bar Registration	Registered with the Kraków Bar Association; Licensed Restructuring Advisor; precise registration numbers must be verified directly [User Context]	¹⁶
Languages	Polish, Fluent English	¹⁶
Ranking Signals	Highly ranked in The Legal 500 EMEA (Poland > Restructuring and Insolvency)	¹⁶
Fee Structure	Custom corporate rates; hourly partner fees (600–1,200 PLN) and associate fees (300–600 PLN)	[User Context]

Specialization and Strategic Fit

Groele i Wspólnicy is a premier restructuring and insolvency boutique in Poland, with its primary team based in Kraków.¹⁶ The firm is widely recognized in international directories for advising both creditors and debtors on highly complex bankruptcy and restructuring matters.¹⁶ The Legal 500 notes that practice head Bartosz Groele "combines deep technical expertise with pragmatic, commercially viable solutions," and identifies key contacts Piotr Paśko and Kamil Strus as leading specialists for contentious litigation.¹⁶ The firm's expertise is highly suited for cases involving complex insolvency procedures.¹⁶ If the

debtor's bankruptcy progresses to a highly contested proceeding, Groele i Wspólnicy provides the technical expertise needed to handle active creditor representation and navigate potential asset-recovery actions.¹⁶

Risk Assessment and Red Flags

No disciplinary issues exist. The primary consideration is cost and case size.¹⁶ As a top-ranked insolvency boutique, their fees are positioned at the premium end of the market, and a

155,000 PLN

claim may be considered relatively small for partner-level attention.¹⁶

However, their local Kraków presence ensures that their junior or senior associates can handle filings efficiently under partner supervision.¹⁶

Draft Outreach Correspondence

Subject: URGENT: Precautionary Attachment & Creditor Protection (Krakow) – Claim: 155k PLN

Dear Mr. Groele,

I am writing to inquire about your firm's availability to represent me in an urgent commercial debt recovery and insolvency prevention matter in Krakow.

Case Background

Creditor: Magnus Brantheim (individual commercial creditor based outside Poland)

Debtor: Mateusz Szklarski-Lobata, trading as "GPUcomputer" (NIP 8661681248, ul. Mogilska 16/7, Krakow)

Claim Amount: 155,000 PLN principal plus interest, arising from a breached workstation supply contract and a subsequently signed email refund agreement.

Current Situation: An EPU case has been initiated (Nc-e 552126/26, pending), but the debtor has threatened that he has "filed for bankruptcy protection." No KRZ registration is active yet.

We require immediate assistance to draft and file a precautionary attachment motion (wniosek o zabezpieczenie) with the Sad Rejonowy dla Krakowa-Srodmiestia (V Wydział Gospodarczy) to secure a freeze on his known Alior Bank account (PL84 2490 0005 0000 4530 9127 6540) and other assets prior to the formal opening of any insolvency.

proceedings. Given your firm's top-tier ranking in restructuring and insolvency, your team is perfectly equipped to handle both this precautionary phase and any subsequent representation within the KRZ.

Could you please confirm:

1. Your capacity to initiate this matter and file the motion this week;
2. Your fee structure (fixed fee for the zabezpieczenie and hourly/success fee rates for follow-on litigation and bankruptcy monitoring);
3. The lead associate or partner who would be assigned to this matter.

I am available for an immediate call and can sign a power of attorney electronically.

Kind regards,

Magnus Brantheim

KKG Legal (Kubas Kos Gałkowski i Wspólnicy)

Metric	Details	Source
Lead Contact	Rafał Kos, PhD, LL.M. (Founding Partner) Wojciech Wandzel (Partner)	17
Office Address	Nowa Kamienica, ul. Rakowicka 7, 31-511 Kraków	17
Contact Info	Phone: +48 12 619 40 40 Email: kontakt@kkg.pl	17
Bar Registration	Registered with the Kraków Bar Association; precise registration numbers must be verified directly [User Context]	17
Languages	Polish, English, German, Ukrainian, Russian	17

Ranking Signals	Recommended in Chambers Europe, Legal 500, Forbes, and Rzeczpospolita rankings	¹⁷
Fee Structure	Premium corporate hourly rates; partners 600–1,200 PLN/h, senior associates 300–600 PLN/h	[User Context]

Specialization and Strategic Fit

KKG Legal is one of the most prominent independent law firms in southern Poland, operating from a modern headquarters in Kraków.¹⁷ With over 30 years of practice, the firm has earned a national reputation for business litigation, commercial arbitration, and corporate insolvency.¹⁷ The Legal 500 recommends KKG in Dispute Resolution & Arbitration, as well as Insolvency and Restructuring, praising their highly responsive team and ability to deliver practical, actionable solutions.¹⁷

Rafał Kos and Wojciech Wandzel are prominent litigators in Poland, with Wandzel recognized as one of the country's most influential lawyers.¹⁷

KKG possesses the resources and litigation experience to handle high-stakes asset tracing and aggressive court battles.¹⁷ Their international desk regularly advises foreign clients on Polish litigation, ensuring clear communication in English.¹⁷

Risk Assessment and Red Flags

No negative reviews or disciplinary actions are present. The primary challenge is cost: KKG Legal is a full-service, premium corporate firm.¹⁷ Their fee structure is positioned at the top of

the local market, and a **155,000 PLN** commercial dispute may be considered a minor file within their portfolio, potentially leading to delegation to junior associates.¹⁷

Draft Outreach Correspondence

Subject: URGENT: Preliminary Bank Account Attachment's Commercial Litigation
Krakow

Dear Dr. Kos:

I am seeking urgent representation from a premier litigation firm in Kraków to handle a commercial dispute and file an immediate precautionary attachment motion (wniosek o zabezpieczenie) against a local debtor.

Case Parameters:

- Claim: 155,000 PLN principal plus statutory interest
- Debtor: Mateusz Szklarski-Lopata, trading as "GPUcomputer" (NIP 8661681248, ul. Mogilska 16/7, Kraków)
- Emergency: The debtor has notified me that he is "seeking bankruptcy protection." An EPU case has been filed but is delayed in decree. I need to urgently file an attachment motion in the Sąd Rejonowy dla Krakowa-Śródmieścia (V Commercial Division) to freeze his bank accounts (including a known Alior Bank account: PL 84 2490 0005 0000 4530 7127 6540) and assets before a KRZ bankruptcy entry is made.

Given KKG's stellar reputation in commercial dispute resolution and insolvency, I would like to retain your firm to handle this emergency filing and any subsequent litigation.

Please let me know:

1. Your firm's capacity to accept this matter and prepare the filing this week.
2. Your fee proposal (fixed fee for the attachment motion and hourly rates for the litigation/bankruptcy monitoring).
3. The primary contact attorney who would lead the drafting.

I can provide the evidentiary file and execute an electronic Power of Attorney today.

Kind regards,

Magnus Brantheim

Creo Kancelaria Prawna

Metric	Details	Source
Lead Contact	Anna Stefańczyk (Doradca Restrukturyzacyjny, Adwokat, Partner)	19
Office Address	ul. Karmelicka 32/20, 31-128	19

	Kraków	
Contact Info	Phone: +48 12 307 44 99 Email: biuro@creo-kancelaria.pl	¹⁹
Bar Registration	Registered with the Kraków Bar Association; Licensed Restructuring Advisor; precise registration numbers must be verified directly [User Context]	¹⁹
Languages	Polish, English capacity	[User Context]
Ranking Signals	Emerging regional boutique; specialist in corporate restructuring and wealth protection	¹⁹
Fee Structure	Moderate boutique flat fees (zabezpieczenie target 1,500–4,000 PLN) and hourly rates	[User Context]

Specialization and Strategic Fit

Creo Kancelaria Prawna is a specialized regional boutique focused on corporate restructuring, consumer bankruptcy, and wealth protection.¹⁹ Partner Anna Stefańczyk is a licensed restructuring advisor and advocate with significant experience in debt negotiation and insolvency proceedings.¹⁹

The firm explicitly highlights its ability to provide direct support and develop practical solutions within 24 hours.¹⁹

Because the firm's partners are licensed restructuring advisors, they have a deep understanding of the KRZ registry, the timing of bankruptcy filings, and the exact window available to creditors before an insolvency stay takes effect.¹⁹

For an urgent matter where the client is racing to file a bank freeze before the debtor registers a bankruptcy filing, Creo's specialized focus and flat-rate pricing make them a highly practical option.¹⁹

Risk Assessment and Red Flags

The corporate entity, Creo Kancelaria Prawna Sp. z o.o., was registered in late October 2024, making it a relatively young brand in the Kraków legal market.²²

While individual partners like Anna Stefańczyk have a solid professional background, the firm lacks the long-standing corporate reputation of competitors like KKG or Gostyński.⁸

Draft Outreach Correspondence

Subject: URGENT: Precautionary Attachment Filing (Krakow) - NIP 8551681248

Dear Ms. Stefanczyk

I am reaching out to secure immediate legal counsel in Kraków to file an urgent precautionary attachment motion (wniosek o zabezpieczenie roszczenia) against a debtor who is threatening imminent bankruptcy.

The debtor is Mateusz Szklarski-Lopata, trading as "GPUcomputer" (NIP 8551681248, ul. Mogilska 16/7, Krakow), and the claim is for 155,000 PLN principal plus statutory interest based on a written refund agreement. Although an EPU case is pending (Nc-e 552/26/26), the debtor claims he is seeking bankruptcy protection. I must file an urgent attachment motion with the Sad Rejonowy dla Krakowa-Śródmieścia (v Commercial Division) to freeze his Alior Bank account (PL84 2490 0005 0000 4530 9127 6540) and other assets before a formal KRZ entry is registered.

Your specialized focus on corporate restructuring and your team's background as licensed restructuring advisors make you highly qualified to handle this procedural race against the debtor's bankruptcy timeline.

Could you please confirm:

1. Your capacity to draft and file the wniosek o zabezpieczenie this week.
2. Your fixed-fee estimate for the motion and subsequent coordination with the bailiff.
3. Your estimated timeline to filing.

I am available immediately to provide the case files and sign a Power of Attorney electronically.

Kind regards,

Magnus Brantheim

Comparative Assessment of Shortlisted Candidates

To guide the client's procurement decision, the shortlisted firms have been evaluated across the key selection criteria:

#	Lawyer /Firm	City	English	Special ty Fit (1–5)	Speed Signal	Fee Transp arency	Overall Recom mendat ion
1	Gostyński & Partners	Kraków	Fluent (NY Bar Lead) ⁷	5/5	High (Agile commercial practice) ⁷	Moderate (Custom commercial quotes)	Excellent (Top choice for foreign clients)
2	Wojciech Kremer	Kraków	Fluent ¹¹	5/5	High (Solo/Boutique agility) ¹¹	High (Boutique flat fees)	Highly Recommended (Best value and speed)
3	Proniewski & Przybyłka	Kraków	Professional ⁶	5/5	High (Specialized in creditor defense) ⁶	High (Multiple pricing models) ⁶	Highly Recommended (Strong procedural match)
4	Groele i Wspólnicy	Kraków	Fluent ¹⁶	5/5	Moderate (Large corporate)	Low (Premium hourly rates)	Good (Best if complex litigation)

					focus)	only)	n scales)
5	KKG Legal	Kraków	Fluent ¹⁷	4/5	Moderate (Large institutional firm)	Low (Premium corporate rates)	Good (Overkill for a 155k claim, but prestigious)
6	Creo Kancelaria	Kraków	Professional	4/5	High (Promises 24-hour response) ¹⁹	High (Competitive boutique rates)	Good (Strong restructuring expertise, newer entity)

Top Pick and Strategic Justification

The primary recommendation for this engagement is **Gostyński & Partners**, led by Managing Partner Szymon Gostyński.⁷ This choice is justified by Gostyński's dual qualification in Poland and New York, which provides a high level of communication and a clear understanding of the needs of international clients.⁷

Furthermore, the firm's deep experience in both corporate debt collection and creditor-side insolvency representation ensures they can handle both the initial attachment phase and the follow-on litigation or bankruptcy monitoring.⁷ Their office on ul. Studencka provides immediate access to the Kraków-Śródmieście district court and local court bailiffs.¹

While their rates are positioned at the premium end of the local market, their specialized capabilities are highly aligned with the strategic requirements of this urgent asset recovery action.⁷

Works cited

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